IN THE UNITED STATES COURT OF APPEALS
FOR THE ARMED FORCES

UNITED STATES
Appellee
v.
JONATHAN R. PINKERTON
Specialist (E-4)
United States Army
Appellant

BRIEF ON BEHALF OF APPELLANT

Crim. App. Dkt. No. 20240353
USCA Dkt. No. 26-0225/AR

TO THE JUDGES OF THE UNITED STATES COURT OF APPEALS FOR THE ARMED FORCES:

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Granted Issue

Whether appellant's right to confrontation was violated with the admission of JP's forensic interview.

Statement of Statutory Jurisdiction

The Army Court of Criminal Appeals (Army Court) had jurisdiction over this matter pursuant to Article 66, Uniform Code of Military Justice [hereinafter UCMJ], 10 U.S.C. § 866. This Honorable Court has jurisdiction over this matter under Article 67(a)(3), UCMJ, 10 U.S.C. § 867 (a)(3).

Statement of the Case

On July 19, 2024, a panel with enlisted representation sitting as a general court-martial convicted Appellant, Specialist Jonathan R. Pinkerton, contrary to his pleas, of five specifications of sexual abuse of a child in violation of Article 120b, Uniform Code of Military Justice.[1] (JA 7-9, 16-19). On July 20, 2024, the military judge sentenced appellant to 120 months of confinement and to be dishonorably discharged from the service.[2] (JA 10, 16-19). On August 2, 2024, the convening authority approved the findings and adjudged sentence. (JA 13). On November 13, 2024, the military judge entered Judgment. (JA 12).

On April 20, 2026, the Army Court affirmed the findings and sentence. *United States v. Pinkerton*, ARMY 20240353, 2026 CCA LEXIS 197 (Army Ct.

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[1] The military judge granted appellant's motion to dismiss Specification 6 of The Charge pursuant to Rule for Court Martial 917. (JA 91).

[2] The military judge sentenced appellant as follows: The Charge, Specification 1 (JP), 84 months; The Charge, Specification 2 (JP), 60 months; The Charge, Specification 3 (AP), 36 months; The Charge, Specification 4 (JP), 36 months; The Charge, Specification 5 (JP), 36 months. The military judge ordered Specifications 1, 2, 4, and 5 of The Charge to be served concurrently and consecutive to Specification 3 of The Charge. (JA 10).

Crim. App. Apr. 20, 2026). (JA 3). On July 29, 2026, this Court Granted Appellant's petition for grant of review of the first presented issue and ordered briefing under Rule 25. (JA 1).

Statement of Facts

At the time of the alleged misconduct, Appellant and his wife had five children—two of whom were girls named JP and AP. (JA 132).

After moving to Fort Sill, Oklahoma, in August 2020, Appellant's family befriended Ms. Shannon Taylor—a member of their church's worship team and a chaplain's wife. (JA 131, 133). Ms. Taylor grew particularly close to JP and AP. (JA 143).

A. JP Discloses Her Allegation of Sexual Abuse to Ms. Taylor.

On or about February 19, 2023, Ms. Taylor babysat JP and AP—then five and three years old respectively. (JA 136). While bathing the girls, Ms. Taylor noticed JP's hand "lingering . . . down in her private part area" and told her with few exceptions, "we don't really touch our parts." (JA 137-38).

JP asked, "[s]o, you mean nobody should ever ask you to touch there [sic] private parts?" (JA 139). Ms. Taylor replied whether "somebody asked [her] that," to which JP said, "[y]es." (JA 139). JP said it was "[d]addy" that touched her.[3] (JA 140). During this conversation in the bathtub, AP sat silently next to JP. (JA 140).

After putting AP to bed, Ms. Taylor, using her cell phone to record the conversation, had JP repeat her earlier statement. (JA 140, 366). JP said Appellant asked her if she would touch his genitals and if she would touch her own genitals, and that he then touched her genitals. (JA 366).

[3] Although the record is unclear as to why Ms. Taylor was a mandatory reporter, all sides recognized her as such.

Ms. Taylor intended to give the recording to Appellant's wife. (JA 141). Instead, as a mandatory reporter,[4] Ms. Taylor delivered the recording to CID. (JA 101). Special Agent (SA) Richard Caldwell video recorded Ms. Taylor's recording and arranged for a child forensic interviewer to meet with JP.[5] (JA 142, 157-58).

B. A Forensic Interviewer Meets with JP.

On February 23, 2023, a forensic interviewer met with JP while SA Caldwell observed in an adjacent room. (JA 158). JP recounted and expanded upon her initial statement to Ms. Taylor. (JA 367).

C. The Government Sought to Admit JP's Forensic Interview as Residual Hearsay.

Fearing JP might forget the details of her allegations when called to testify, the government sought to pre-admit her prior statements pursuant to Mil. R. Evid. 807. (JA 246). The military judge issued a preliminary ruling finding the government had not satisfied Mil. R. Evid. 807(a)(2) as it was speculative that JP's memory faded, that she would refuse to testify, or that she would fail to appear for trial. (JA 277).

On the eve of trial, it seemed like JP would not appear. Since JP's interview, Appellant's wife declined the government's efforts to interview her daughter and indicated she would refuse to bring JP to Appellant's court-martial. (JA 234).

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[4] A forensic interviewer also met with AP. At trial, AP, now five years old, testified that she never told anyone that she was inappropriately touched by someone and denied being asked about it previously. (JA 173). Appellant did not cross-examine AP. (JA 174). The government admitted AP's forensic interview; however, the remainder of the brief will only address JP as she is the only alleged victim pertaining to the granted issue.

[5] There was no objection to the recording of Ms. Taylor's video of JP taken by SA Caldwell and it was admitted as Pros. Ex. 22.

Ultimately, the prospect of a warrant of attachment motivated Appellant's wife to bring JP to trial. (JA 102-28).

D. On Direct Examination, JP Immediately Stated She Did Not Want to Testify.

Several hours later, the government called JP, now seven years old, to testify. (JA 160-63). Before taking the oath and in front of the panel, JP stated "I don't want to testify." (JA 162). The military judge told JP, "I understand, but it's a requirement for you to testify." (JA 162). When asked by the prosecutor if she promised to tell the truth, JP said, "I don't want to." (JA 163). After JP appeared to become emotional, the military judge called for a twenty-minute recess. (JA 163).

The government recalled JP. (JA 168). After answering some preliminary questions, JP acknowledged the circumstances of her presence:

> GOV: [JP], do you know why you're here today?
>
> JP: [Witness becomes emotional.] Of course I do, and I don't like the reason.
>
> GOV: Okay, why is that?
>
> JP: Because it's going against my dad, and I love him.
>
> (JA 169).

The government asked, "[JP], will you talk about the things that happened, that brought us here today?" JP answered, "No!" (JA 170). The government asked no further questions and Appellant offered no cross-examination. (JA 170).

E. The Military Judge Admitted JP's Forensic Interview as Residual Hearsay.

After JP briefly testified, the government sought to admit Pros. Ex. 22 and 23—JP's previously recorded statement—under Mil. R. Evid. 807. (JA 366-67).

Appellant objected under the Confrontation Clause and argued the government failed to satisfy the requirements for residual hearsay. (JA 176).

Regarding the Confrontation Clause, the military judge found JP's statement was testimonial. (JA 314). But she found Appellant's confrontation rights were satisfied when she took the stand, thus providing Appellant with an opportunity for cross-examination. (JA 223). Ultimately, the military judge admitted Pros. Ex. 22 and 23. (JA 220, 223).

Appellant was convicted of Specifications 1, 2, 4, and 5 of The Charge relating to JP.[6] On April 20, 2026, the Army Court summarily affirmed Appellant's convictions. (JA 3).

Summary of Argument

Appellant was denied due process when the military judge committed reversible constitutional error by admitting JP's out-of-court forensic interview during his court-martial. The Sixth Amendment's Confrontation Clause guarantees a criminal defendant the right to confront the witnesses against him, securing a fundamental, procedural guarantee of a meaningful, face-to-face opportunity for cross-examination.

Physical presence on the stand is a prerequisite for confrontation, but it is not a constitutionally sufficient shield for the government if the witness has preemptively and categorically refused to discuss the abuse allegations like JP did here. Admitting JP's out-of-court forensic interview, in the absence of a meaningful opportunity to cross-examine her, violated Appellant's right to confrontation.

[6] The conviction for Specification 3 of The Charge involves AP.

Argument

I. Whether Appellant's right to confrontation was violated with the admission of JP's forensic interview.

A. Standard of Review and Law

Whether admitted evidence violates the Confrontation Clause is a question this Court reviews de novo. *United States v. Blazier*, 68 M.J. 439, 442 (C.A.A.F. 2010). If it finds such a violation, this Court cannot affirm the conviction unless the evidence's admission was harmless beyond a reasonable doubt. *United States v. Rankin*, 64 M.J. 348, 353 (C.A.A.F. 2007).

The Confrontation Clause provides that "[i]n all criminal prosecutions, the accused shall enjoy the right . . . to be confronted with the witnesses against him." *Giles v. California*, 554 U.S. 353, 357–58 (2008). Where testimonial evidence is at issue, the Sixth Amendment "demands what the common law required: unavailability and a prior opportunity for cross-examination." *Crawford v. Washington*, 541 U.S. 36, 68 (2004). "The Confrontation Clause is not violated by admitting a declarant's out-of-court statements, as long as the declarant is testifying as a witness and subject to . . . cross-examination." *California v. Green*, 399 U.S. 149, 158 (1970).

The Court has recognized that a defendant does not have an opportunity to cross-examine a witness who refuses to testify. *Douglas v. Alabama*, 380 U.S. 415 (1965). While an oath or affirmation to testify truthfully is a prerequisite to testify, the oath is not a prerequisite to refuse to testify. Mil. R. Evid. 603; *See United States v. Washington*, 63 M.J. 418, 424 (C.A.A.F. 2006).

B. The Two-Path Constitutional Dilemma: JP's Absolute Refusal to Testify Extinguished Any Cognizable Opportunity for Cross-Examination.

The constitutional error in this case presents two alternative, yet equally fatal, pathways. Regardless of the pathway, the admission of the out-of-court forensic interview violated Appellant's Sixth Amendment right to confrontation.

1. Path 1: JP Refused to Testify Before Taking the Oath.

The first pathway of constitutional error occurred when JP entered the courtroom and explicitly refused to testify before taking the oath. (JA 162). At that point, she was functionally unavailable, and admitting her forensic interview was a direct violation of Appellant's confrontation rights.

The baseline threshold of confrontation is a functionally interactive, communicative exchange, not merely a display of physical proximity. *Owens*, 484 U.S. at 561-62; *Douglas*, 380 U.S. at 419. JP's mere physical presence on the stand was an empty gesture and insufficient to satisfy Appellant's constitutional confrontation rights. Merely placing a child witness on the stand without eliciting substantive, material testimony is constitutionally deficient and fails to satisfy the core requirements of the Confrontation Clause. *People v. Sharp*, 155 P.3d 577, 582 (Colo. App. 2006).

Conclusion

As JP refused to testify and did not willingly respond to any questions regarding her allegations against Appellant, he did not have an opportunity to meaningfully cross-examine her. Therefore, Appellant's right to confrontation was violated with the admission of JP's out-of-court statements. Furthermore, this Court cannot affirm Appellant's convictions regarding her allegations, as the

government cannot prove these statements were harmless beyond a reasonable doubt since they were the only evidence of JP's purported abuse.

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Certificate of Compliance with Rule 24(b)

This brief complies with the type-volume limitation of Rule 24(b) because: This brief contains 1833 words. This brief complies with the typeface and type style requirements of Rule 37.

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Certificate of Filing and Service

I certify that a copy of the foregoing was electronically filed with the Court and electronically served on the Government Appellate Division on September 9, 2026.

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